

Anand Kumar Bajpai v. State of U.P. and others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 27 February 2024 · 2024:AHC-LKO:17652-DB · Writ - C No. 826 of 2023; Civil Misc. (Withdrawal) Application No. IA/9 of 2024 · **Writ withdrawn with liberty to file afresh.**

HEADNOTE

Writ resisting recovery of electricity dues more than twenty years old, said to arise from a connection in the name of Smt. Deepti Gupta, was withdrawn with liberty to file afresh because relevant facts had been left out. The Court made no construction of paragraphs 4.1 and 6.15 of the Electricity Supply Code, which counsel had only cited at an earlier hearing.

FACTUAL SUMMARY

Anand Kumar Bajpai filed a writ in the Allahabad High Court, Lucknow Bench, resisting recovery of electricity dues more than twenty years old from a connection issued to Smt. Deepti Gupta, whose address the licensee already held. The Court asked why those dues were being recovered from the petitioner. The licensee then invoked clause 4.1 of the Supply Code and the petitioner clause 6.15, and affidavits were directed. He later applied to withdraw the writ because relevant facts had been left out.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

withdrawal of writ without supply-code construction

HOLDING

On the petitioner's prayer the writ was withdrawn with liberty to file a fresh petition, relevant facts having been left out, and was consigned to record. No finding was given on recovery of the dues or on paragraphs 4.1 and 6.15 of the Electricity Supply Code. ¶ 3

PRINCIPLE TAGS

procedural-listing-no-construction

The writ was adjourned for instructions and affidavits after counsel cited Supply Code paragraphs 4.1 and 6.15, and was then withdrawn with liberty; the Court construed neither clause. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER DUES MORE THAN TWENTY YEARS OLD, OF A CONNECTION ISSUED TO SMT. DEEPTI GUPTA, CAN BE RECOVERED FROM THE PETITIONER UNDER PARAGRAPH 4.1 OR ARE BARRED BY PARAGRAPH 6.15 OF THE ELECTRICITY SUPPLY CODE.

Left open by withdrawal with liberty to file a fresh petition. ¶ 1-3